PLAINFIELD CHARTER TOWNSHIP
GENERAL EASEMENT AND RIGHT-OF-WAY

KNOW ALL MEN BY THESE PRESENTS, that JIM TIBBE HOMES, LLC, whose address is 1777 R W Berends Drive SW, Wyoming, Michigan 49519, organized under the laws of the State of Michigan, party of the first part, for and in consideration of the sum of One Dollar ($1.00) paid to it by PLAINFIELD CHARTER TOWNSHIP, party of the second part, whose address is 6161 Belmont Ave., Belmont, MI 49306, does hereby convey, grant and release to the said party of the second part a permanent easement and right-of-way in which to construct, operate, maintain, repair and/or replace drains, sewers, water lines or other public service facilities or public utility facilities or any combinations thereof, over, across, under, and through a portion of the following parcel of land situated in the Township of Plainfield, in the County of Kent, State of Michigan, known as the burdened parcel, and described as:

Unit 25, 43 North, according to the master Deed recorded in Document No. 20141113-0094509, Kent County Records, and designated as Kent County Condominium Subdivision Plan No. 982, together with rights in the general common elements and the limited common elements as shown on the Master Deed and as described in Act 59 of the Public Acts of 1978, as amended.

Said drains, sewers, water lines or other public service facilities or public utility facilities shall be located within the easement and right-of-way which is described on the attached Exhibit A (the "Easement Area").

Plainfield Charter Township is also granted the right of ingress and egress through and within the burdened parcel to the Easement Area for the purpose of construction, operation, maintenance, repair and/or replacement thereof. It is understood that no buildings of any kind or nature will be placed upon the above permanent right-of-way without the prior written consent of Plainfield Charter Township.

Any existing buildings, structures or fences, the removal or demolition of which shall be required for the reasonable exercise of the foregoing powers, shall be removed or demolished at the expense of party of the second part. This conveyance includes a release of any and all claims to damage arising from or incidental to the exercise of any of the foregoing powers, except that if the burdened parcel and/or the Easement Area shall be disturbed by reason of the exercise of any of the foregoing powers, the same shall be restored to its original condition by the party of the second part.

This instrument shall be binding upon and inure to the benefit of the parties hereto, their heirs, representatives, successors and assigns.

This conveyance is exempt from transfer tax pursuant to MCL 207.505(a) and MCL 207.526(a).

IN WITNESS WHEREOF the party of the first part has hereunto set its hand the day and year first written above.

GRANTOR:

Jim Tibbe Homes, LLC, a Michigan limited liability company

By: _____
Dale H. Kraker
Its: Authorized Agent

STATE OF MICHIGAN)
) SS
COUNTY OF KENT)

The foregoing instrument was acknowledged before me this 26th day of October, 2015, by Dale H. Kraker, the Authorized Agent, of Jim Tibbe Homes, LLC, a Michigan limited liability company, on behalf of the limited liability company.

_____
* Jeff Klaasen
Notary Public, Kent County, Michigan
Acting in Kent County, Michigan
My commission expires Sept. 26, 2021

Prepared by:

Todd A. Hendricks (P45782)
Rhoades McKee PC
55 Campau Ave., NW, Suite 300
Grand Rapids, MI 49503
(616) 233-5128

When Recorded Return To:

Plainfield Charter Township
6161 Belmont Ave., N.E.
Belmont, MI 49306
(616) 364-8466

*Print or type name beneath signature line

(Revised 1/13)

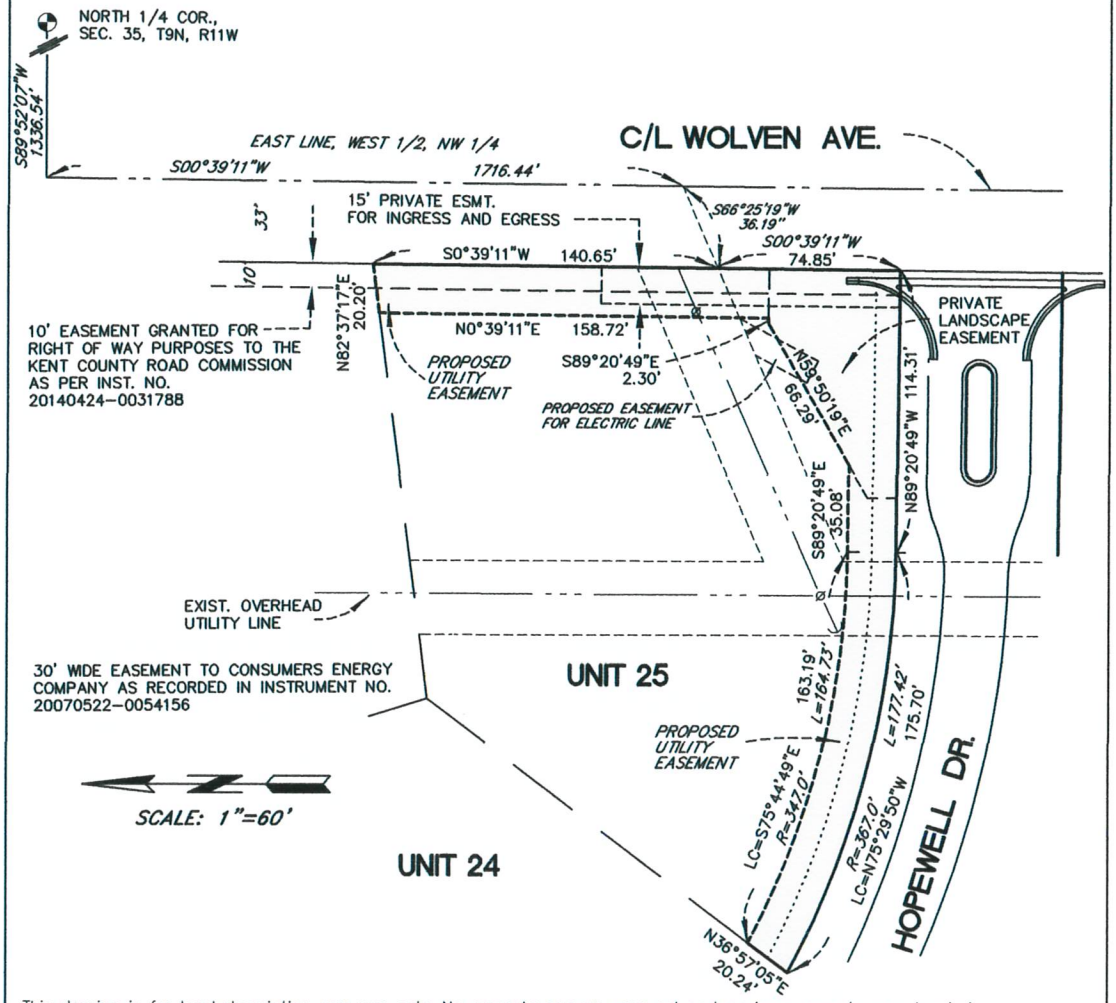
Exhibit A

Insert Legal Description for Easement Area

Project No.130501-E4
Date: October 21, 2015
For: Dale Kraker
Wolven Investments LLC
3115 Railway Drive
Byron Center, MI 49315

LEGAL DESCRIPTION

An Easement for utilities in part of the West 1/2 of the NW 1/4 of Section 35, T9N, R11W, Algoma Township, Kent County, Michigan, described as: Commencing at the North 1/4 corner of said Section; thence S89°52'07"W 1336.54 feet along the North line of said Section; thence S0°39'11"W 1716.44 feet along the East line of said West 1/2, NW 1/4; thence S66°25'19"W 36.19 feet to the Place of Beginning of said Easement; thence S0°39'11"W 74.85 feet; thence N89°20'49"W 114.31 feet along the North line of Hopewell Drive (private); thence Westerly 177.42 feet along said Northerly line, along a 367.0 foot radius curve to the right, the long chord of which bears N75°29'50"W 175.70 feet; thence N36°57'05"E 20.24 feet; thence Easterly 164.73 feet along a 347.0 foot radius curve to the left, the long chord of which bears S75°44'49"E 163.19 feet; thence S89°20'49"E 35.08 feet; thence N59°50'19"E 66.29 feet; thence S89°20'49"E 2.30 feet; thence N0°39'11"E 158.72 feet; thence N82°37'17"E 20.20 feet; thence S0°39'11"W 140.65 feet to the Place of Beginning of said easement.



This drawing is for legal description purposes only. No property corners were set and no improvements were located.

LEGEND

- o - IRON STAKE - SET
- ● - IRON FOUND
- □ - WOOD STAKE
- R - RECORDED DIMENSION
- D - DEED DIMENSION
- P - PLATTED DIMENSION
- M - MEASURED DIMENSION
- ℄ - CENTERLINE
- x-x - FENCE LINE

Roosien & Associates
SURVEYING AND ENGINEERING
5055 PLAINFIELD AVENUE, NE
GRAND RAPIDS, MICHIGAN 49525
TELE. (616) 361-7220
FAX (616) 361-1822

STATE OF MICHIGAN
KEVIN ROOSIEN
LAND SURVEYOR
No. 31604
PROFESSIONAL SURVEYOR

BY